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EMERGENCY MOTION TO STAY ENFORCEMENT OF CONTEMPT SENTENCE

****NOW COMES** Respondent, ANDREW J. PIGORS, in pro per, and respectfully requests this Honorable Court to enter an immediate stay of enforcement of the February 28, 2025 Contempt Judgment and associated Jail Mittimus, pending resolution of the Emergency Motion for Reconsideration and to Vacate Contempt Judgment, pursuant to MCR 2.119(E), MCR 2.614(A)(1), and MCR 3.708(H)(6). In support, Respondent states:******

1. On February 28, 2025, the Court entered an order finding Respondent in contempt and sentencing him to 14 days in jail.
2. Respondent has timely filed a Motion for Reconsideration and to Vacate the Contempt Judgment under MCR 2.119(F) and MCR 2.612(C)(1)(a), (c), and (f), raising substantial legal and factual issues including newly discovered exculpatory evidence.
3. The police report (MU2422249) dated November 15, 2024, confirms no PPO violation occurred.
4. Enforcement of the sentence prior to adjudication of the pending motion would result in irreparable harm to Respondent's liberty, employment, and ability to care for his minor child.
5. A stay is appropriate under MCR 3.708(H)(6) which permits suspension of sentence upon application pending appeal or post-judgment motion.
6. This request is made in good faith and not for purposes of delay. Respondent is indigent and has no prior criminal record of PPO violations.

****WHEREFORE****, Respondent respectfully prays that this Court:

- A. GRANT this Emergency Motion to Stay Enforcement of Sentence; and
- B. ORDER that the February 28, 2025 jail sentence be stayed pending adjudication of Respondent's Motion for Reconsideration.

Respectfully submitted,

****/s/ Andrew J. Pigors****

1977 Whitehall Road, Lot 17

Muskegon, MI 49445

(231) 903-5690

Pro Se Respondent

Date: March 20, 2025

EMERGENCY APPLICATION FOR LEAVE TO APPEAL (PROPOSED TEMPLATE)

STATE OF MICHIGAN

IN THE MICHIGAN COURT OF APPEALS

ANDREW J. PIGORS,

Petitioner-Appellant,

v.

EMILY A. WATSON,

Respondent-Appellee.

Court of Appeals No.: TBD

Lower Court No.: 2023-5907-PP

Trial Judge: Hon. Jenny L. McNeill

EMERGENCY APPLICATION FOR LEAVE TO APPEAL PURSUANT TO MCR 7.205

NOW COMES Andrew J. Pigors, Petitioner-Appellant, and respectfully requests that the Michigan Court of Appeals grant leave to appeal the Muskegon County Circuit Court's February 28, 2025 Order finding him in contempt and sentencing him to 14 days in jail, and further grant a stay of enforcement under MCR 7.209(E).

In support of this Application, Appellant states:

1. The lower court erred by issuing a contempt judgment based on alleged PPO violations that police explicitly stated did not occur (see Report MU2422249).
2. Appellant was denied due process under **People v. Atchison** and **In re Winship**, as no evidence established willful PPO violation beyond a reasonable doubt.
3. The trial court refused to hear or consider newly discovered evidence and denied Appellant's constitutional right to be heard.
4. The record lacks findings of willfulness, proportionality, or ability to comply, in violation of **Bearden v. Georgia**.
5. A Jail Mittimus was issued without considering less restrictive alternatives or staying the sentence pending reconsideration.
6. Appellant is indigent and has no other effective remedy at law.

RELIEF REQUESTED:

Appellant respectfully requests that this Court:

- A. GRANT this Emergency Application for Leave to Appeal;
- B. STAY the execution of the jail sentence pending appeal; and

C. GRANT such other relief as justice requires.

Respectfully submitted,

/s/ Andrew J. Pigors

1977 Whitehall Road, Lot 17

Muskegon, MI 49445

(231) 903-5690

Date: March 20, 2025

(End of Emergency Protective Filings)